

Approved as to
form only:

Date: 6/8/21

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE COMMUNITY RECREATION AND EVENTS DEPARTMENT TO APPLY FOR A SMALL BUSINESS ADMINISTRATION SHUTTERED VENUE OPERATORS GRANT TO RECOUP A PORTION OF REVENUE LOSSES INCURRED AS A RESULT OF MANDATORY CORONAVIRUS INDUCED CIVIC CENTER CLOSURES."

WHEREAS, the Shuttered Venue Operators Grant Program, administered by the U.S. Small Business Administration, was established by the Economic Aid to Hard-Hit Small Businesses, Nonprofits, and Venues Act, and amended by the American Rescue Plan Act to provide emergency assistance for eligible venues affected by COVID-19; and

WHEREAS, the City of Cheyenne Civic Center is eligible to receive funding in the amount of \$910,128.60 which is equal to 45% of its 2019 gross earned revenue; and

WHEREAS, allowable fund uses include payroll costs, utility payments, worker protection expenditures, administrative costs, insurance payments, advertising, production transportation, and capital expenditures related to producing live performing arts productions; and

WHEREAS, the Cheyenne Civic Center meets Third Priority funding as a city entity that suffered 25% or greater earned revenue loss between one quarter of 2019 and the corresponding quarter of 2020.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body authorizes the City of Cheyenne Community Recreation and Events Department to apply for grant funding in the amount of \$910,128.60 through the Small Business Administration Shuttered Venue Operators Grant program for Fiscal Year 2021 to recoup a portion of revenue losses incurred as a result of mandatory coronavirus induced Civic Center closures.

BE IT FURTHER RESOLVED that the Mayor and City Clerk are authorized to execute all documents, including a grant agreement, to secure funding under the U.S. Small Business Administration to the extent that such documents are consistent with this Resolution.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2021.

Patrick J. Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk



Funding Request

Cheyenne Civic Center - SVOG

[+ Follow](#)

✓ Application Processing Fields

External Status

Submitted

Application Date

5/25/2021

Status Related Comments to Applicant

Your application is "Submitted"

✓ Funding Request Details

Funding Request Name

Cheyenne Civic Center - SVOG

Grant Application Number

SBAHQ21SV013124

Type of Application

Majority Government Owned

CFN ⓘ

DA-000038430

✓ Applicant's Organization Information

Organization

Cheyenne Civic Center

Date Business Began Operation ⓘ

4/11/1981

Account Venue

Live venue operator or promoter

Contact

Renee Smith

Title

Grants Manager

EIN

836000050

NAICS Code

711310

DUNS

075758169

(DUNS) Plus 4

0000

✓ Authorized Representative

Authorized Representative

Robin Lockman

Title

Treasurer

Phone

3076376336

Fax
8554846955

Email
rlockman@cheyennecity.org (<mailto:rlockman@cheyennecity.org>).

✓ Award Information

Adjusted Proposed Grant Amount Applicant ⓘ
\$910,128.61

Awarded Date

PPP Loan Amount Applicant ⓘ

Term Start Date

Grant Amount

Term End Date

 [Action Items \(0\)](/s/action-item/related/a1rt0000002R8D5AAK/Action_Items_r) (/s/action-item/related/a1rt0000002R8D5AAK/Action_Items_r).

 [Requirements \(6+\)](/s/requirement/related/a1rt0000002R8D5AAK/outfunds_Milestones_r) (/s/requirement/related/a1rt0000002R8D5AAK/outfunds_Milestones_r).

Requirement Name	Requirements	Has Attachment	Answer
DR_010 (/s/requirement/a1st0000002K76...	1. SF-4506T		
DR_020 (/s/requirement/a1st0000002K77...	2. Tax records for 2019 and 2020; or docum...		
DR_030 (/s/requirement/a1st0000002K76...	3. SBA Form 1623		
DR_040 (/s/requirement/a1st0000002K77...	4. CERTIFICATION REGARDING DRUG-FREE ...		
DR_050 (/s/requirement/a1st0000002K76...	5. SF-424b Assurances		
DR_060 (/s/requirement/a1st0000002K76...	6. SF-LLL Disclosure of Lobbying Activities. ...		
View All			

/s/requirement/related/a1rt0000002R8D5AAK/outfunds_Milestones_r

 [Revenue Receipts \(6\)](/s/revenue-receipts/related/a1rt0000002R8D5AAK/Revenue_Receipts_r) (/s/revenue-receipts/related/a1rt0000002R8D5AAK/Revenue_Receipts_r).

Revenue Receipts Number	Revenue Type	Year	Total Applicant
RR - 079973 (/s/revenue-receipts/a8tt000...	Gross Revenue	2019	\$2,146,292.29
RR - 079976 (/s/revenue-receipts/a8tt000...	Earned Revenue	2019	\$2,022,508.02
RR - 079974 (/s/revenue-receipts/a8tt000...	Gross Revenue	2020	\$911,530.38
RR - 079977 (/s/revenue-receipts/a8tt000...	Earned Revenue	2020	\$404,972.55
RR - 079975 (/s/revenue-receipts/a8tt000...	Gross Revenue	2021	\$318,211.33
RR - 079978 (/s/revenue-receipts/a8tt000...	Earned Revenue	2021	\$19,877.97
View All			

/s/revenue-receipts/related/a1rt0000002R8D5AAK/Revenue_Receipts_r

 [Budget and Expen... \(1\)](/s/budget-and-expenditure/related/a1rt0000002R8D5AAK/Budget_and_Expenditure_r) (/s/budget-and-expenditure/related/a1rt0000002R8D5AAK/Budget_and_Expenditure_r).

Budget/Expenditure Number	Type	Start Date	End Date
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B&E-00013250 (/s/budget-and-expenditu... Budget/Expenditure Number	Budget Reported by Applicant Type	Start Date	End Date
View All			
/s/budget-and-expenditure/related/a1rt0000002R8D5AAK/Budget_and_Expenditure_r			

 [Affiliates as declared in the Application \(0\) \(/s/relatedlist/a1rt0000002R8D5AAK/Affiliates_r\)](/s/relatedlist/a1rt0000002R8D5AAK/Affiliates_r)

 [Disbursements \(0\) \(/s/relatedlist/a1rt0000002R8D5AAK/outfunds_Disbursements_r\)](/s/relatedlist/a1rt0000002R8D5AAK/outfunds_Disbursements_r)



When the Shuttered Venue Operators Grant applications open, specific documents will be needed to support grant requirements and eligibility, as required by the Economic Aid Act.

To assist with gathering and preparing the necessary SVOG application materials in advance of the opening, the SBA is providing the following preliminary list of supporting documentation that will be required. All documents will need to be legible and certification documents will need to be signed and dated. **This is not an all-inclusive list and additional documents may be required to meet eligibility and compliance.** Changes/updates from previous versions are indicated with an * prior to the item.

The SVOG application process is still under development and this list is subject to further refinement. Detailed document descriptions can be found following the list. For additional information on program eligibility, definitions, etc., refer to the [website](#) and SVOG [Frequently Asked Questions](#).

All Applicants

Background documents

- ☐ Written statement of need
- ☐ Corporate documents (may include Articles of Incorporation, Certificate of Existence, Certificate of Organization, State LLC Agreement, Certificate of Formation or Articles of Information)
- ☐ Government issued photo ID (front and back) of the business owner or a primary officer of the organization
- ☐ Employee list with job titles and employee status (full and part time)
- ☐ Tax Exempt Status Letter (only required for non-profit entities)

Financial documents

- ☐ 2019 Tax Return
- ☐ 2020 Tax Return, if filed
- ☐ Quarterly Income Statements for 2019 and 2020, signed by a primary officer of the organization
- ☐ *Copy of most recent audited financial statement (2019) or Single Audit (if applicable) or link to website where the report can be located. (An audited financial statement should be submitted by entities that obtained this document within the normal course of business in 2019. A Single Audit should be submitted by entities that expended \$750,000 or more in Federal grant funds in 2019.)
- ☐ Indirect Cost Rate Agreement from cognizant Agency (if applicable)
- ☐ Payroll statements covering February 29, 2020

Standard Forms

- ☐ [SF-424B – Assurances for Non-Construction Programs](#) (found on grants.gov)
- ☐ [Certification of a Drug-free Workplace](#)
- ☐ [SBA Form 1623](#), Certification Regarding Debarment, Suspension, and Other Responsibility Matters
- ☐ [SBA Form 1711](#), Certification Regarding Lobbying & Disclosure of Lobbying Activities

Applicant-Specific Documents

Live Venue Operator or Promoter, Theatrical Producer, or Live Performing Arts Organization Operator

- ☐ *If the applicant is the operator of a venue: Floor Plan (or comparable documentation demonstrating defined performance and audience areas and plan of grounds if outdoor space is used for the performance venue)
- ☐ *If the applicant is the operator of a venue: Documents to show that the venue has audio mixing equipment, a public address system, and a lighting rig
- ☐ *If the applicant is promoting or producing live performing arts events at venues they do not operate: List of venues at which the applicant has promoted, produced, managed, or hosted live events between January 1, 2019 and February 29, 2020.
- ☐ Marketing materials listing event title, show time, and price or entry requirements (may include printed materials or social media posts)
- ☐ Box office/ticketing report that shows dates, artists, ticket prices, and number of tickets sold for all February 2020 performances (If the venue was in operation but had no performances in February 2020, select one month between January 2019 and January 2020 and provide that report.)

Motion Picture Theatre Operator

- ☐ Floor Plan of the facility that identifies the projection booth. In lieu of a floor plan, applicant may provide proof of a cinema projection system AND a photo of at least one auditorium in the facility.
 - The photo must clearly show that the auditorium includes a motion picture screen and fixed audience seating.
- ☐ Examples of proof of projection system are service agreements, purchase agreements, or contracts from a projector provider, or a digital cinema certification form.
- ☐ Marketing materials listing motion picture titles and show times (may include printed materials or social media posts)
- ☐ Box office/ticketing report that shows dates, ticket prices, and number of tickets sold for all February 2020 performances (If the theater was in operation but had no performances in February 2020, select one month between January 2019 and January 2020 and provide that report.)

Museum

- ☐ Floor Plan (and plan of grounds if outdoor space is used for the performance venue)
- ☐ State or local COVID-19 occupancy restrictions demonstrating limits on occupancy

Talent Representative

- ☐ Contractual/Consultant Agreements with talent represented, venues used and evidence of booking
- ☐ List of all individuals or acts represented and venues for which they were contracted to perform in 2019 and 2020 (including performances cancelled due to COVID-19)

Document Descriptions

Background Documents

WRITTEN STATEMENT OF NEED: Required by statute and must include:

- a. A good faith certification that the uncertainty of current economic conditions makes the grant necessary to support the ongoing operations of the eligible person or entity.
- b. If the entity is currently in operation, must state that the entity will remain in operation after receipt of the funds. If the entity is currently shuttered, the statement shall include the intent to reopen with an estimated reopening date.
- c. All statements shall include an assurance that the entity was fully operational on February 29, 2020.

CORPORATE DOCUMENTS: Items such as Articles of Incorporation, Certificate of Existence, Certificate of Organization, State LLC Agreement, Certificate of Formation, Articles of Information, or Partnership Agreements. The documents must be valid at the time of submission and have all required signatures.

GOVERNMENT ISSUED PHOTO ID: A copy of a photo ID of the business owner or a primary officer of the organization. Acceptable forms of ID are a state driver's license or identification card, passport book, passport card, US military or military dependent ID, US permanent resident card, etc.

EMPLOYEE LIST: A complete listing of all who worked for the entity as of February 29, 2020 (this is separate from the official payroll record). Each employee must include:

- a. Complete name (First and Last name)
- b. Description of employee: full-time; part-time; temporary from employee agency, leasing concern, or through a union agreement; co-employed pursuant to a professional employer organization agreement; salaried; included in payroll; not included in the payroll; owner; officer; shared with affiliate; etc. Some individuals may require multiple designations in the description: e.g. "Jane Smith - owner, salaried, included in payroll; Joe Smith - owner, not included in payroll, shared with affiliate."
- c. *Number of hours employee works per pay period.

TAX EXEMPT STATUS LETTER: Required for non-profit entities; also known as a "determination letter" and confirms the entity meets the IRS criteria for being a tax-exempt charitable organization.

Financial Documents

2019 TAX RETURNS: If in operation for any portion of 2019, a copy the entity's 2019 tax return.

2020 TAX RETURNS: If already filed, a copy the entity's 2020 tax return. The 2020 tax return must be provided to the SBA when filed with the IRS.

INCOME STATEMENTS FOR 2019 AND 2020: Quarterly income statements which demonstrate all sources of revenue and expenditures. If the entity was not in business for all of 2019, include income statements for all quarters it was in operation.

***AUDITED FINANCIAL STATEMENT:** Copy of most recent audited financial statement (2019) or Single Audit (if applicable) or link to website where the report can be located. An audited financial statement should be

submitted by entities that obtained this document within the normal course of business in 2019. A Single Audit should be submitted by entities that expended \$750,000 or more in Federal funds in 2019.

INDIRECT COST RATE AGREEMENT FROM COGNIZANT AGENCY (if applicable): Submit current approved rate and attach indirect cost rate agreement from cognizant agency. If a current negotiated indirect cost rate is not in place, a proposed indirect cost rate may be negotiated. If a negotiated cost rate agreement was never in place, a 10% de minimis rate in accordance with procedures in 2 C.F.R. 200.414.

Standard Forms

SF-424B – ASSURANCES FOR NON-CONSTRUCTION PROGRAMS: Certifies the entity will comply with all applicable requirements of the federal laws, executive orders, regulations, and policies governing the grant program.

CERTIFICATION OF DRUG-FREE WORKPLACE: Certifies applicant will provide a drug-free workplace.

SBA FORM 1623: Certification Regarding Debarment, Suspension, and Other Responsibility Matters.

SBA FORM 1711: Certification Regarding Lobbying & Disclosure of Lobbying Activities.

Applicant-Specific Documents

FLOOR PLAN: Provide the floor plan used for insurance purposes or local fire inspections. Floor Plan (and plan of grounds if outdoor space is used for the performance venue) should demonstrate the location of the defined performance space.

For Motion Picture Theatre Operators, the floor plan should also identify the projection booth. In lieu of a floor plan, Motion Picture Theatre Operators may provide proof of a cinema projection system AND a photo of at least one auditorium in the facility.

- The photo must clearly show that the auditorium includes a motion picture screen and fixed audience seating.
- Examples of proof of projection system are service agreements, purchase agreements, or contracts from a projector provider, or a digital cinema certification form.

PROOF OF AUDIO MIXING EQUIPMENT, A PUBLIC ADDRESS SYSTEM, AND A LIGHTING RIG: This can include receipts for purchase or installation, or insurance documents covering the items.

MARKETING MATERIALS: Include copies of print or electronic advertising, paid receipts for advertising, social media pages, etc. that list event or motion picture titles, show times and dates, and ticket price or entry requirement.

BOX OFFICE/TICKETING REPORT: Should show dates, artists or events, ticket prices, and number of tickets sold. Provide the report for all February 2020 performances. If the venue was in operation but had no performances in February 2020, select one month between January 2019 and January 2020 and provide that report.

STATE OR LOCAL COVID-19 OCCUPANCY RESTRICTIONS: A copy of state or local ordinances that demonstrate the limitation on occupancy that affected the museum.

CONTRACTUAL/CONSULTANT AGREEMENTS: contractual/consultant agreements with talent represented, venues used and evidence of booking. Depending on the number of contracts, not all contractual agreements may be needed however you may need to provide the agreements as evidence of lost revenue.

LIST OF INDIVIDUALS REPRESENTED AND VENUES: Crosswalk listing of all individuals or acts represented and venues for which they were contracted to perform. This list should include all talent represented in 2019 and 2020, the venues for which they were contracted to perform and the performance dates (note if the performance was canceled due to COVID-19).